



CHAPTER 9.

An Act to explain and amend sections two hundred and ninety-two and two hundred and ninety-three of the Government of India Act, 1935, and sections one hundred and forty-eight and one hundred and forty-nine of the Government of Burma Act, 1935. [18th February 1937.] A.D. 1937.

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) For the purposes of sections two hundred and ninety-two and two hundred and ninety-three of the Government of India Act, 1935, which provide for the existing laws of British India to continue in force therein after the date of the commencement of Part III of the said Act, subject to the power of His Majesty in Council to make such adaptations and modifications in any such law as appear to His Majesty to be necessary or expedient for bringing the provisions of that law into accord with the provisions of the said Act,—

Continuance
and adapta-
tion of
certain
existing
laws in
India and
Burma.
26 Geo. 5. &
1 Edw. 8.
c. 2.

- (i) a law passed or made before the said date by a Legislature or other competent Authority in British India, and not previously repealed, is, for the removal of doubts, hereby declared to be a law in force immediately before that date, notwithstanding that it, or parts

A.D. 1937.

of it, may not then be in operation, either at all or in particular areas;

- (ii) any such law which immediately before the said date has extra-territorial effect as well as effect in British India shall, subject to any such adaptations and modifications as aforesaid, continue to have extra-territorial effect;
- (iii) the power of His Majesty in Council to make in an existing Indian law such adaptations and modifications as aforesaid shall be deemed to include power to declare any such law, or any part thereof, to be repealed, if it appears to His Majesty in Council that its continuance is unnecessary or inexpedient in view of the provisions of the said Act;
- (iv) nothing in the said sections shall be construed as continuing any temporary Act in force beyond the date fixed for its expiration.

(2) Paragraphs (i) to (iv) of the preceding subsection shall apply also in relation to sections one hundred and forty-eight and one hundred and forty-nine of the Government of Burma Act, 1935 (being the sections of that Act corresponding to the said sections two hundred and ninety-two and two hundred and ninety-three), with the following adaptations—

- (a) references to British India and to an Indian law shall be construed respectively as references to Burma and to a Burma law;
- (b) for the words “in view of the provisions of the said Act” there shall be substituted the words “in view of the separation of India and Burma.”

Short title.

2. This Act may be cited as the India and Burma (Existing Laws) Act, 1937.

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